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EPILOGUE

PUBLICITY AND MEDIATION

IT IS TRAGICALLY APPROPRIATE THAT one of the last acts of the US war in Afghanistan was a drone strike that killed ten civilians, including seven children. Seemingly an attempt to eliminate an “imminent threat” to those trying to leave the airport at Kabul, and carried out in the wake of the earlier attack on the airport that killed both Afghani civilians and US military personnel, the strike did not kill anyone associated with either the original attack or the imminent threat. Instead, it killed someone who had helped the United States during its occupation of Afghanistan.¹ What was perhaps different about this attack, compared with the many others that characterized this war, was its very public nature. Initially announced by the Pentagon as a successful strike, this particular attack was immediately open to the scrutiny of the public sphere. That the strike happened in Kabul rather than in a remote region of Afghanistan aided this. Indeed, many journalists, from both local and international agencies, were quickly able to debunk the Pentagon’s claims that the strike had killed a member of ISIS-K (the Afghanistan affiliate of ISIS). Upon early reports that several civilians and children had been killed, the Pentagon pushed back on claims

that this had been a botched drone strike. General Mark Milley claimed that despite the killing of children and civilians, it had been a “righteous” strike. Pentagon intelligence, he claimed, showed that they had killed their intended target. Very quickly, though, even this cartoonishly theological rhetoric could not cover up the fact that only civilians had been killed and the Pentagon intelligence was far from foolproof. In many ways, then, the last act of the war was an indictment of the drone. Indeed, the very failure of the two decades-long occupation demonstrated the inability of this weapon, in many ways a metonym of the war, to exist with an independent polity and that any attempt to create a polity policed by drones will fail.

Such an outcome will not be a surprise to many. Nor will news of the botched strike come as a surprise to anyone who has paid attention to the numbers of civilians killed by drones in Afghanistan or to the ways intelligence about lethal strikes is gathered and interpreted. However, this event, which seems to show the failure of drone warfare, is also the measure of its success. The fact that it is out of the shadows, an open part of public discourse that the Pentagon can publicly boast about, shows that drone warfare has been absolutely normalized. Even though targeting is obviously as haphazard as ever and even supposedly righteous strikes can still kill seven children (a fact Milley did not deny while calling the strike righteous), drone warfare is now part of American public discourse. The idea that the US government assassinates people from airborne robots is no longer treated with secrecy, nor is it subject to scandal. Drone warfare used to be practiced almost exclusively under the cloak of secrecy. If at first this was perhaps because of a certain ethical squeamishness about killing people by remote control, this kind of shamefacedness is disappearing. We did not need to wait for this strike in Kabul to know this. It was already clear enough after the Trump administration’s glee at having killed an Iranian general by drone strike.² The Biden administration’s open acknowledgment of the killing by drone of Al-Qaeda leader Ayman al-Zawahiri confirms this.³ Drones are public knowledge. It is difficult to see, however, how such a technology could be consistent with the public sphere. Of course, the public sphere is supposedly one of the most important legacies of the Enlightenment. Taking advantage of the spread of new media technology (especially print), the public sphere is supposed to be a space that mediates rational debate. However, this public mediation, in which a virtual

public space enables the transparent exchange of ideas, contrasts markedly with the kind of mediation characteristic of the drone. Indeed, the drone itself is an agent of mediation that extends the senses of the human body (making sight and touch work at a distance and adding, through its sensors, new ways of engaging with the world through cell-phone tracking and heat sensing). One final consequence of drone warfare I want to explore is the way that it requires us to draw a distinction between mediation and publicity. Drone warfare shows that these two legacies of the Enlightenment are heterogeneous, and the kind of intense acceleration of the process of mediation represented by the drone introduces a radical asymmetry between mediation and publicity.

William Warner and Clifford Siskin claim that the Enlightenment is an event in the history of mediation. In particular, they argue that the Enlightenment saw a radical change in how human experience and knowledge were mediated. For instance, when Siskin and Warner discuss Francis Bacon's contribution to the Enlightenment, they do so by focusing on Bacon's insistence that human reason needs to be mediated through tools, in particular what he called the "mechanical arts."⁴ For Bacon, they explain, the state and potentiality of knowledge was radically changed by the recent discoveries of the printing press, gunpowder, and the nautical compass.⁵ Strikingly, the latter two of these three revolutionary pieces of technology are also in many ways central to the drone, a technology unthinkable without both highly accurate GPS and very destructive munitions. Add to this triumvirate of early modern inventions the telescope, and the drone, a mobile destructive eye, is well enough described. These technologies also indicate several of the drone's mediations. It extends the ability to harm, extends the field of vision, and makes infinitely more precise our sense of space. The drone's various sensors, capable of picking up heat signatures and cell-phone activity, also augment the kinds of senses with which the human engages in the world. Especially in the way it tracks cell-phone activity, the drone's mediation capitalizes on the extent to which other technologies of mediation make the human body enter into larger networks, such as cell-phone, satellite, and social media networks, which mediate its presence.

If drone warfare capitalizes on this technology, though, it works, as in other things, asymmetrically. While counting on the way all our lives are mediated by large networks of information, those who prosecute drone

warfare rely on keeping their information and methods secret. As we have seen throughout this book, military drone policy selects and justifies its targets in secret processes, and the mediated data used to control drones is resolutely not publicly available. This is not, of course, entirely new for warfare, as any form of warfare involves secrecy about information, tactics, and methods. What makes drone warfare different is the combination of a reliance on an increasingly networked world, in which a person's life can be traced through accessible data, and the secrecy about the decisions made based on that data. There is thus a strong contrast between the radical technological mediation relied upon in the technique of drone warfare and the possibility for reasoned, public debate about it. Mediation and publicity are heterogeneous.

Drone warfare thus requires that mediation and publicity be thought of as distinct. In some ways this situation finally gives the lie to Kant's distinction in "What is Enlightenment?" between the public use of reason (which must remain unrestricted and unconditioned) and the civil or official use of reason (which can always be conditioned and forced to obedience by a public magistrate). Kant argues that it is not contrary to the spirit of the Enlightenment for a person with a civil post to do things inconsistent with his own reason under the orders of a magistrate, insofar as he can speak unconditionally according to his reason in public. Kant distinguishes, in this sense, between what he calls the private reason of a man acting in a civil post and his public reason, in which he speaks "before the entire *literate world*" in the guise of a scholar. In speaking of man's private reason, which is somewhat counterintuitively exercised in his capacity as a public official, Kant repeatedly uses mechanical metaphors. He says that in the "affairs conducted in the interests of the community, a certain mechanism is required by means of which some of its members must conduct themselves in an entirely passive manner" to produce "an artificial unanimity." In this case, he says, a man "must not argue" but obey. He refers to man in this capacity as "part of the machine."⁶ As Warner and Siskin point out, the depreciation of the mechanical in Kant stands in contrast to Bacon's claim that the move forward for knowledge requires human reason to be mediated by tools.⁷ However, Kant's distinction between the mechanicity of private reason and the free use of reason in public is not entirely about knowledge. It is also about ethics or morals. In the terms that I have used

to discuss drone warfare the man who is part of this machine is part of a network of agency in which his complicity or responsibility for the various decisions and effects produced by this machine is diffused. It is against this complicity, and even as an antidote to the necessity of this complicity, that Kant proposes the public use of reason. The free use of public reason is a compensation for “private” immersion in a mechanical network of action.

While Kant may have been right that the free public use of reason once compensated for the complicity of one’s reason and agency in the mechanical operation of authority structures, under the conditions of drone warfare the public use of reason is overmatched by the radical mediation of agency and action. There is a profound asymmetry between how the drone mediates and how reason can be used in public. The move in drone warfare (both ideologically and practically) toward a situation in which every human body can be traced, subjected, and mediated through data that is not available publicly introduces an asymmetry between mediation and publicity and makes it impossible for any public use of reason to keep up. One reason for this is that public reason by definition cannot have all the necessary data available. The data is for the most part actually inaccessible, but it is also structurally secret. Even when a particular drone strike can be challenged, and even if some of the information about that strike has been leaked, there always remains the possibility that the sovereign authority can merely say there is yet more secret, classified data that they cannot reveal, which tells a different story. Indeed, this approach was attempted even in the very clear case of the drone strike in Kabul with which I opened this epilogue. That the military was finally forced to admit an error in this case should be seen as a lucky and exceptional accident, not as a rule that demonstrates that drone warfare can be adequately policed and disciplined by the public media.

The second reason that public reason and mediation are so starkly distinguished in drone warfare is that the question of complicity, which Kant was able to sidestep in “What is Enlightenment?,” returns with full force in drone warfare in such a way that, once again, a Hobbesian theory of action is more appropriate for thinking about the drone than a liberal, Kantian account of reason. In “What is Enlightenment?” Kant sees both the necessity to obey against one’s better judgment when exercising

private reason and the complicity in undesirable outcomes that may result from, for instance, obeying an order from a superior officer that may be “inappropriate” as compensated fully by the freedom to use one’s reason publicly. It is precisely this distinction between a mediated, mechanical form of action and agency and an autonomous use of reason only mediated by the transparency of the public sphere that drone warfare radically challenges. Warner and Siskin, in reading Kant’s account of the Enlightenment and knowledge, find it appropriate to move backward to Bacon for a mechanical account of knowledge production. In order to look at an account of mechanical agency and complicity, it is, as this book has argued, worth returning to Hobbes. Hobbes is significant in this context because of the way he narrows to almost nothing the gap between complicity or forced consent and free choice. Hobbes, for instance, argues that any promises made under duress must be fulfilled even after the conditions of duress have passed. In a notorious passage from *Leviathan*, Hobbes argues that even in a civil state “if I am forced to redeem my selfe from a Theefe by promising him money, I am bound to pay it. . . . For whatsoever I may lawfully do without Obligation, the same I may lawfully Covenant to do through feare.”⁸ Hobbes’s principle here is that a forced promise is still a promise, a forced consent still a consent. This stems from his mechanistic theory of agency, whereby there would always be some external cause beyond that of one’s own conscience, or “free will,” that determines our choices. As we saw in chapter 1, the web of external causation envelops every subject, every body, in a network of causes from which it cannot simply escape, not even with a free and public use of reason. Both this freedom and this publicity are already thoroughly conditioned and mediated by the network of causes in which one acts.

One consequence of Hobbes’s principle is to redraw the distinction between mediation and publicity. Kant sees the Enlightenment as consisting in the compensation of a restriction (a mechanistic mediation) in private reason with the free and autonomous use of reason in public. Hobbes’s paradigm makes it clear that this autonomous use of reason is always conditioned by something, by the subject’s or body’s placement in a network of causes that restricts it. Drone warfare shows why this is more than a merely theoretical distinction between free will and determinism. The immense reach and power of mediation in drone warfare, the extent of the technological and mediating networks on which it relies, are asymmetrical with

and dwarf any use of public reason. This is not, of course, to say that a person may not, as Kant would have it, speak in public before the literate world as a scholar. Indeed, in many parts of the world this freedom to speak as a scholar is guaranteed and even taken for granted in a way that Kant could barely have imagined. However, it is precisely the power and significance of such public speech that our current moment (exemplified by the phenomenon of drone warfare) must surely call into question.

One of the most powerful acts of public speech about drone warfare in recent times was the December 2021 publication in the *New York Times* of a series of articles about civilian deaths in the US air wars in Iraq and Syria. Alongside these articles, the *Times* made public “hundreds of the Pentagon’s confidential assessments of reports of civilian casualties resulting from U.S.-led airstrikes in Iraq and Syria.”⁹ These files give the public some insight not only into the strikes themselves but also into how Pentagon officials went about investigating reports that there were civilian casualties as a result of the strikes. They thus provide some challenge both to claims that there were few civilian casualties as a result of these airstrikes (many of which were made by drones) and to claims that the Pentagon has investigated in a responsible manner reports of civilian casualties. Beyond this archive, the reporting itself is the most important and necessary kind of work, uncovering as it does many of the consequences of drone warfare, especially for civilians, but also the kinds of processes that go into the approval and investigation of a drone strike.¹⁰ It delves, then, into the nitty-gritty of drone warfare. However, the thoroughness that makes this work important and fantastic—the visiting of particular sites of drone strikes, the interviewing of survivors—is also what demonstrates its asymmetry with the way drone warfare is carried out. The move to the public media, to publicity, to accountability is so much slower than the mediation of the drone, which arrives at decisions so quickly. This difference in speed is so asymmetrical that it makes mediation within drone warfare completely distinct from the necessarily slow speed of mediation in the public sphere.

Another critical example of this is the contrast between the necessary and important public speech of ICRAC, the group of academics committed to stopping the rise of autonomous warfare, and the unerring movement toward the use of autonomous drones to target and kill. As in so much to do with drone warfare, the future is already here, in advance of any public discussion about its ethical or moral consequences. Various

kinds of weapons capable of autonomous targeting already exist. In a presumably intentionally provocative piece of irony, such weapons are called lethal autonomous weapons systems (or LAWS). One of the more publicized LAWS is the Turkish-made Kargu-2 drone. This drone is small and designed to be used as an antipersonnel weapon. Machine learning algorithms allow it to distinguish targets on its own, meaning that it can attack without intervention by a human user.¹¹ In June 2020, media reports emerged that the Kargu-2 had carried out an autonomous strike in a conflict in Libya. However, as several commentators pointed out, the UN report on the matter (the original source for all other reports) confirms that an autonomous drone carried out a strike, but it does not explicitly say that anyone was killed in the attack.¹² Among experts cognizant about this topic, there is some confusion about why this particular report gained media traction. This is because there have already been various instances of automated attacks, often by loitering munitions, which, unlike drones, are single-use missiles rather than vehicles that launch munitions. Furthermore, National Public Radio quotes Jake McDonald, a lecturer in war studies at King's College, London, as saying that the UN report is not clear on whether the drone in question was actually operating autonomously at the time.¹³ On the Twitter page of Ulrike Franke, who works with the European Council on Foreign Relations, there is a thread that explains her confusion as to why this is being reported as something new and unique, especially as it is not clear whether the Kargu-2 drone was even an active participant in this battle.¹⁴ While these expert clarifications are important, they tend to miss the point. That is to say, such confusion, ambiguity, and uncertainty works to actively ensure that drones with autonomous targeting capabilities will be working before they become subject to public debate; indeed they are already. Public reason is thus already behind technological advances, structurally late to the party. The Enlightenment of technological mediation is too fast, too powerful for the Enlightenment of reasoned public debate.

Some anxiety about this phenomenon is voiced by Vivek Wadwha and Alex Salkever in an article for *Foreign Policy* about the reports of the Kargu-2 strike. They worry that consumer technology has outpaced “military adoption of advanced technologies” and that cheap, autonomous killer drones could thus become easily available to all kinds of nonmilitary groups.¹⁵ It is clear, though, that for Wadwha and Salkever the greatest anxiety is

not about these drones themselves but about the possibility that their use will not be monopolized by Western militaries. Indeed, they somewhat gallingly worry that actors who are not concerned about collateral damage may get hold of new kinds of autonomous weapons, when, as we have seen, for the US military a strike that kills seven children can still be deemed righteous. Furthermore, it is clear that the development of drones by non-Western countries and their deployment in battles outside the sphere of Western control also fundamentally undermine any free public speech about, for instance, the necessity of banning autonomous weapons. This is partly because any precedent in usage becomes an immediate reason or justification for their continued use. Accepting that the news about the use of drones is not new news normalizes their use and provides a strong reason for Western nations to continue development of such weapons systems. More importantly, the very fact that this debate is about Turkish-made drones being used in a conflict in Libya shows that technological networks of agency not only outpace but also overspread the limits of the public sphere. While intellectuals in the Western world are able to debate drone use and debate (as does this book) its relation to Western sovereignty, action in other parts of the world is already shifting the debate beyond the use of drones by powerful Western nations. Drone warfare demonstrates, in this sense, that the mechanical networks of agency produced by technological mediation are no longer (if they ever were) compensated for or even challenged by the possibility of the free use of reason in public.

All of this is not to say that public speech about drone warfare is not necessary. Indeed, the publication in the *New York Times* of reports about collateral damage does much to shed light on the kinds of techniques used to decide who can be bombed and when, and they certainly challenge the ideology that drone warfare does not produce significant collateral damage. Such work is essential, and only by its entering the public sphere can drone policy be challenged. Such work, though, is always behind, excellent because of its meticulousness but for that reason no match for the reckless speed of drone assassination. In this sense, drone warfare, in capitalizing on one aspect of the Enlightenment (its revolution in the mediation of knowledge) radically undermines another (the mediation of the public sphere). This is yet another asymmetry of drone warfare with which we must grapple.

